

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2021-CC-009032

DWAINE LEE PARROTT and
ANY UNKNOWN TENANT(s),

Defendants.

**MOTION FOR FINAL DEFAULT JUDGMENT FOR DAMAGES, LIEN
ENFORCEMENT AND JUDICIAL SALE**

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel, moves this Court to grant a final default judgment against Defendant(s), DWAINE LEE PARROTT and ANY UNKNOWN TENANT(s), in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, filed suit under Florida Statute §723.061(1)(a), for removal of a mobile home park lot tenant, for possession of the Plaintiff's real property, for damages and to enforce Plaintiff's landlord lien pursuant to Florida Statutes §713.691 and §713.77.

2. The Plaintiff is a mobile home park operating in Manatee County, Florida pursuant to Florida Statutes Chapter 723, located at 900 9th Avenue East, Palmetto, Florida 34221.

3. Plaintiff, as landlord, leased to Defendant, DWAINE LEE PARROTT, Lot #199, of the above-stated mobile home park at a monthly rental fee of \$626.50. The Plaintiff is owed

lot rent for the month of November and December of 2021 and January and February of 2022, NSF Fee of \$20.00, Late Fee of \$45.00 and prior balance of \$691.50 in the sum of \$3,328.50 pursuant to the Rental Agreement. Plaintiff is also due \$2,877.56 in past due water and sewer expense, as indicated on the Statement from Oates Energy Inc. attached as Exhibit A.

4. Defendant, DWAIN LEE PARROTT, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$6,206.06 as of January 14, 2022.

5. On November 8, 2021, Plaintiff served by posting on Defendant(s), DWAIN LEE PARROTT, a Five-Day Notice of Termination of Tenancy for Non-payment of Rent for the rent due at that time. A copy of this Notice is attached and marked as Plaintiff's Exhibit B.

6. On November 8, 2021, Plaintiff served on Defendants, DWAIN LEE PARROTT and ANY UNKNOWN TENANT(s), a Five-Day Notice of Termination of Tenancy for Nonpayment of Rent by Certified Mail Return Receipt Requested. A copy of the certified receipt is attached and marked as Plaintiff's Exhibit C.

7. Defendants DWAIN LEE PARROTT and ANY UNKNOWN TENANT(s), have failed to make the payment of past due rent, and late fees within five (5) days of delivery of the Notice and continue to refuse to pay the amounts due and owing to Plaintiff.

8. Plaintiff served the Defendant(s), DWAIN LEE PARROTT and ANY UNKNOWN TENANT(s) on December 21, 2021.

9. The owner of the mobile home, DWAIN LEE PARROTT, passed away on or about November 18, 2021 as evidenced by the Death Certificate previously filed herein.

10. A Writ of Possession will put the Plaintiff in possession of the premises of Defendants on or about January 20, 2022.

11. Plaintiff is entitled to a judgment against Defendant(s) for damages arising out of the mobile home residential lot rental agreement and Florida Statute Section 723.061 for failure to pay rent, maintenance expenses, late fees, court costs and reasonable attorney fees arising out of the bringing of this action.

12. Pursuant to the Affidavit of Indebtedness of Plaintiff's Residential Manager, incorporated into this Motion and attached as Exhibit D, Defendant is indebted to Plaintiff in the sum of \$8,886.76.

13. Pursuant to Fla. Statutes §713.691 Plaintiff is entitled to a lien against Defendants' personal property on Lot #199 in the possession of the Plaintiff, including the mobile home and motor vehicle identified below.

14. By virtue of the Writ of Possession issued and executed at 900 9th Avenue East, Lot #199, Palmetto, Florida 34221, upon the Defendant(s) on January 19, 2022, Plaintiff came to be in possession of personal property belonging to the Defendant, namely a *1986 Palm Trailers Double Wide Mobile Home*, VIN No. 40650259AV Title No. 0044231744 and VIN No. 40650259BV, Title No. 0044231742 and a *1991 Ford F150*, VIN No. 1FTDF15N8MNB18011, Title No. 0062340015, which are located on Lot #199 of COLONIAL MOBILE MANOR, with the street address of 900 9th Avenue East, Palmetto, Florida, 34221 lot 199, of the property leased by the Plaintiff to Defendant(s), DWAIN LEE PARROTT and ANY UNKNOWN TENANT(s).

15. Pursuant to Fla. Stat. § 45.031 Plaintiff is entitled to a judicial sale of the mobile home and the motor vehicle to satisfy its judgment for damages against Defendants.

16. Pursuant to Fla. Statutes § 723.068 Plaintiff is entitled to an award of attorney's fees by virtue of prevailing in an action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff attaches an Affidavit of Attorney's Fees, as Exhibit B, and seeks an award of \$1,920.00.

17. Plaintiff is entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's Judgment against the Defendants, DWAIN E LEE PARROTT and ANY UNKNOWN TENANT(s).

18. Plaintiff has perfected its landlord lien against the personal property of Defendants, namely the mobile home identified as a *1986 Palm Trailers Double Wide Mobile Home, VIN No. 40650259AV Title No. 0044231744 and VIN No. 40650259BV, Title No. 0044231742* and the *1991 Ford F150, VIN No. 1FTDF15N8MNB18011, Title No. 0062340015*, which are located on Lot 199 of the property leased to the Defendants.

19. The Plaintiff is entitled to credit toward the purchase of the mobile home and the motor vehicle in the sum representing all of Plaintiff's Judgment against the Defendant(s), DWAIN E LEE PARROTT and ANY UNKNOWN TENANT(s), all costs of this proceeding and reasonable attorney's fees. An Affidavit of Attorney Fees itemizing attorney fees in the amount of \$1,920.00 is incorporated into this Motion and attached as Exhibit E and an Affidavit of Costs in the amount of \$760.70 is incorporated into this Complaint and attached as Exhibit F.

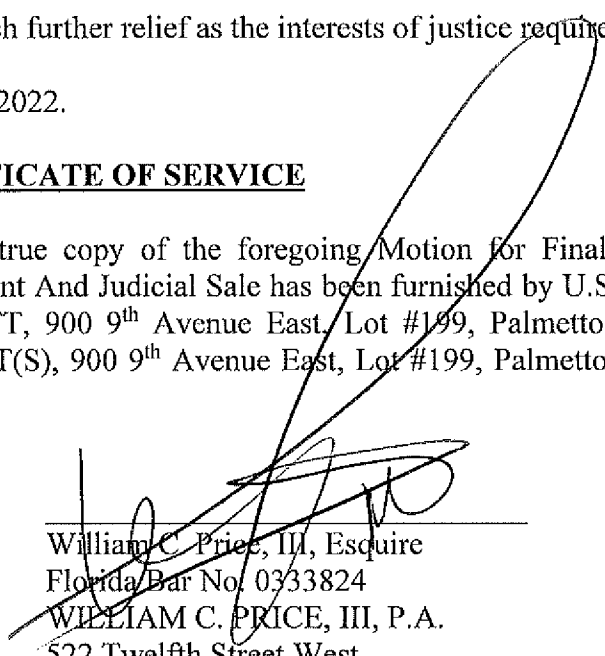
WHEREFORE, the Plaintiff prays this Honorable Court to enter a judgment against the Defendants for damages as identified herein, to declare that the Plaintiff is entitled to a lien against the personal property of the Defendants in the possession of the Plaintiff, and to grant Plaintiff an order, ordering a judicial sale of the mobile home and motor vehicle identified herein

pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, to grant the Plaintiff a credit toward the purchase of the mobile home and motor vehicle representing the unpaid balance of the Plaintiff's Judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee, and for any such further relief as the interests of justice require.

DATED this 19th day of January, 2022.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Final Default Judgment For Damages, Lien Enforcement And Judicial Sale has been furnished by U.S. mail to Defendant(s), DWAIN E LEE PARROTT, 900 9th Avenue East, Lot #199, Palmetto, Florida 34221, and ANY UNKNOWN TENANT(S), 900 9th Avenue East, Lot #199, Palmetto, Florida 34221 on this 19th day of January, 2022.



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